



STANFORDS

## **Policy Compliance Justification**

Although the application site is located outside the defined Settlement Development Boundary of Clacton, it remains policy compliant when read in the context of Policies SPL1 and SPL2 of the Tendring District Local Plan and the approach set out in the National Planning Policy Framework (NPPF, 2024).

### **Strategic Role of Clacton and Sustainability of the Site**

Policy SPL1 (Managing Growth) sets out the settlement hierarchy, recognising Clacton as a Strategic Urban Settlement which is the largest and most sustainable settlement in the district.

Clacton benefits from the widest range of jobs, services, facilities, and transport infrastructure. Growth directed towards or adjacent to such settlements is therefore inherently sustainable and aligns with the spatial strategy of the Local Plan.

The applicant site, while technically beyond the settlement boundary, is directly adjacent to the existing built form of Clacton to both the southwest and southeast and is approximately 3km from the smaller rural settlement of Great Holland. It therefore functions as part of the Clacton urban area rather than as an isolated rural location.

The site's location ensures that future residents would have ready access to employment, shops, schools, healthcare, public transport and other key services, thereby meeting the sustainability objectives underpinning Policy SPL1 and paragraphs 12, 15, 84, 85 and 105 of the NPPF 2024, which seek to focus development in the most sustainable locations and promote sustainable patterns of growth.

### **Relationship with the Settlement Development Boundary (SPL2)**

Policy SPL2 (Settlement Development Boundaries) is designed to manage growth and prevent urban sprawl, not to prevent all development beyond defined boundaries. It expressly states that proposals beyond the SDB will be considered "in relation to the pattern and scale of growth promoted through the Settlement Hierarchy in Policy SPL1." In this case, the proposed development:

- Lies immediately adjacent to the settlement boundary of Clacton, forming a logical and well-contained extension to the existing urban area rather than an isolated incursion into open countryside.
- Does not extend the built form beyond the prevailing settlement edge, as the proposed development will follow the established built form lines of the surrounding development, thereby maintaining a coherent and defensible settlement edge.
- Sits within a well-contained site, ensuring that it does not contribute to sprawl and that a clear transition remains between the built-up area and the wider countryside. The Landscape Officer has agreed that the site does not contribute to the Landscape Character Area or the Strategic Green Gap.

This approach aligns with the objectives of SPL2, as it represents a logical rounding off of the settlement rather than sporadic, unsustainable development.

### **Consistency with the NPPF (2024)**

The NPPF places strong emphasis on boosting the supply of homes, making effective use of land adjacent to existing settlements and focusing growth where it will enhance or maintain the vitality of communities. Decisions should actively manage patterns of growth to support sustainability objectives.

Moreover, the site's immediate proximity to Clacton, coupled with its strong physical and functional relationship with the town, means that it naturally integrates with the settlement pattern and supports the sustainable growth strategy promoted by both the Local Plan and the NPPF.

### **Conclusion**

While the site lies outside the defined Settlement Boundary of Clacton, the proposal is nonetheless consistent with the strategic objectives of Policies SPL1 and SPL2 and the NPPF 2024. The site's adjacency to the existing urban area, its containment and the fact that the proposed development does not breach the established built form lines all mean it will deliver sustainable growth in the most appropriate location in accordance with the settlement hierarchy. Rather than undermining the spatial strategy, the proposal represents a logical, sustainable and policy-compliant extension to the district's largest and most sustainable settlement.